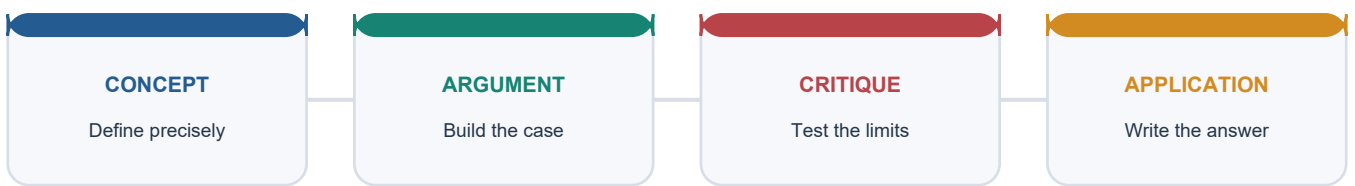


SOLVED PRACTICE WORKBOOK

Citizenship - Solved Practice Workbook

UPSC complete learning session | Foundation to advanced | Concepts, evidence, practice and answer writing

LEARNING PATH



Deterministic fallback visual: move from precise concepts through argument and critique to exam application.

Source order: repository knowledge -> official current linkage -> clearly marked analysis. No fabricated PYQs or statistics.

CONTENTS / WORKBOOK INDEX

Major learning parts and meaningful subtopics are listed in document order. Page numbers are generated from the final PDF layout; PDF bookmarks mirror the same hierarchy.

Citizenship - Solved Practice Workbook 4

BASIC MCQS / REMEDIATION 4

Q1. Which statement best describes the constitutional rights map for citizens and non-citizens?	4
Q2. At commencement, a person relying on Article 5 needed five years' ordinary residence. What indispensable threshold also had to be shown?	4
Q3. For an Article 6 migrant from Pakistan who reached India on or after 19 July 1948, which combination was required?	4
Q4. Article 7's exception applies when a post-1 March 1947 migrant to Pakistan	5
Q5. Article 8 primarily covered	5
Q6. Which statement most accurately combines Articles 9, 10 and 11?	5
Q7. India's single-citizenship design means that	5
Q8. Which distinction is legally sound?	6
Q9. A person born in India on 30 June 1987 is generally a citizen by birth, subject to Section 3(2), because	6
Q10. A person born in India on 2 July 1987, before 3 December 2004, ordinarily needs	6
Q11. For birth in India on or after 3 December 2004, which is sufficient, subject to Section 3(2)?	6
Q12. Section 3(2) denies citizenship by birth in India where	7
Q13. For a person born outside India before 10 December 1992, the ordinary descent rule looked to	7
Q14. From 3 December 2004, citizenship by descent additionally requires	7
Q15. For relevant Section 5 registration categories, the seven-year ordinary-residence formula generally means	7
Q16. A foreign spouse of an Indian citizen who satisfies the residence rule	8
Q17. Under the general Third Schedule, naturalisation ordinarily requires	8
Q18. The distinguished-service proviso to Section 6 allows	8
Q19. Citizenship after incorporation of territory is principally determined by	8
Q20. A full-age citizen's registered declaration giving up citizenship is	9
Q21. Termination under Section 9 is most directly triggered by	9
Q22. Which person is outside Section 10(1)'s opening deprivation category gate?	9
Q23. A lawful deprivation order requires	9
Q24. Under Section 6A, qualifying Indian-origin persons who came to Assam before 1 January 1966 were	10
Q25. A detected Section 6A entrant from 1 January 1966 but before 25 March 1971	10
Q26. What is the controlling result of In Re: Section 6A (17 October 2024)?	10

Q27. Which classification is correct?	10
Q28. Under the 4 March 2021 OCI notification, an OCI cardholder	11
Q29. The 11 August 2025 Section 7D(da) notification permits OCI cancellation where the cardholder is	11
Q30. Which set exactly identifies the CAA Section 6B statutory class?	11
Q31. What does a successful Section 6B process do?	11
Q32. As officially verified through 7 September 2026, which statement is safest?	12

PYQS AND ANSWER PRACTICE 12

Audited ownership and answer-key discipline	12
Objective PYQ 1 - UPSC Prelims 2018 GS-I Q12	12
Objective PYQ 2 - UPSC Prelims 2021 GS-I Q89	13
Six original Mains questions with complete model solutions	13
Original Q1 - 10 marks / 150 words	13
Original Q2 - 10 marks / 150 words	13
Original Q3 - 15 marks / 250 words	14
Original Q4 - 15 marks / 250 words	14
Original Q5 - 20 marks / 250 words	15
Original Q6 - 20 marks / 250 words	15

Citizenship - Solved Practice Workbook

Boundary: Constitutional and statutory citizenship. Foreigners, passport, refugee/asylum and domicile-reservation law are included only to prevent category errors.

Exactly **32 original MCQs** precede the PYQ block. Keys rotate ABCDABCDABCDABCDABCDABCDABCDABCD. Every option has a unique substantive explanation, and every item ends with a unique question-specific Examiner trap.

BASIC MCQS / REMEDIATION

Q1. Which statement best describes the constitutional rights map for citizens and non-citizens?

A. Articles 15, 16, 19 and 29 are citizen-specific, while Articles 14 and 21 protect persons B. Every Fundamental Right is available only to citizens C. Article 19 protects every person lawfully present in India D. Article 14 is citizen-specific but Article 15 protects all persons

Answer: A.

- **A:** Correct: the beneficiary language of each Article controls; citizen-specific and person-based rights coexist.
- **B:** Incorrect: Articles 14, 20, 21 and 25, among others, are framed for persons rather than citizens alone.
- **C:** Incorrect: Article 19 expressly begins with freedoms of citizens and is not a general foreigner guarantee.
- **D:** Incorrect: the option reverses the text-Article 14 protects persons, while Article 15 is citizen-specific.

Examiner trap: The trap is the slogan that nationality determines every Fundamental Right; constitutional text must be read Article by Article.

Q2. At commencement, a person relying on Article 5 needed five years' ordinary residence. What indispensable threshold also had to be shown?

A. Registration before an Indian consul B. Domicile in the territory of India C. A resettlement permit D. Citizenship of both parents

Answer: B.

- **A:** Incorrect: consular registration belongs to Article 8, not the domestic Article 5 route.
- **B:** Correct: domicile was the common threshold, followed by birth, parentage or five-year ordinary residence.
- **C:** Incorrect: a resettlement or permanent-return permit appears in Article 7's exception.
- **D:** Incorrect: Article 5 required either-parent birth in India as one alternative, not citizenship of both parents.

Examiner trap: Residence describes presence; Article 5 demanded the deeper legal attachment of domicile as well.

Q3. For an Article 6 migrant from Pakistan who reached India on or after 19 July 1948, which combination was required?

A. Residence since migration alone B. Five years' residence plus domicile C. Pre-commencement application, six months' residence and registration D. A permit for temporary return

Answer: C.

- **A:** Incorrect: residence since migration was the route for those migrating before 19 July 1948.
- **B:** Incorrect: domicile plus five-year residence describes one Article 5 combination, not Article 6's later migrant stream.
- **C:** Correct: the later stream was permit-era and registration-controlled before commencement.
- **D:** Incorrect: Article 7 requires a permit for resettlement or permanent return, not a temporary permit.

Examiner trap: Do not replace Article 6's 19 July 1948 date with the Assam 1971 or CAA 2014 dates.

Q4. Article 7's exception applies when a post-1 March 1947 migrant to Pakistan

A. returns on any visa B. has an India-born parent C. resides in India for five years D. returns under a permit for resettlement or permanent return and follows the post-19 July Article 6 route

Answer: D.

- **A:** Incorrect: the Constitution names a special-purpose permit, not any lawful travel document.
- **B:** Incorrect: parentage alone does not neutralise Article 7's migration exclusion.
- **C:** Incorrect: five-year residence is an Article 5 connection and does not replace Article 7's permit route.
- **D:** Correct: the exception is controlled by the resettlement/permanent-return permit and Article 6 registration logic.

Examiner trap: Article 7 first excludes and then narrowly reopens a route; it does not grant automatic restoration.

Q5. Article 8 primarily covered

A. persons of Indian origin ordinarily resident abroad who secured diplomatic or consular registration B. all foreign spouses of Indian citizens C. all persons born abroad after 2004 D. OCI cardholders seeking political rights

Answer: A.

- **A:** Correct: Article 8 was the commencement route for qualifying Indian-origin persons outside India.
- **B:** Incorrect: foreign spouses may use a statutory Section 5 route subject to conditions.
- **C:** Incorrect: post-commencement descent is governed by Section 4 of the 1955 Act.
- **D:** Incorrect: OCI is a later statutory foreign-national status and confers no political membership.

Examiner trap: Article 8 and OCI both concern the diaspora, but only the former is a commencement citizenship provision.

Q6. Which statement most accurately combines Articles 9, 10 and 11?

A. Article 9 alone creates a permanent OCI code B. Article 9 limits specified commencement claims; Article 10 continues status subject to law; Article 11 empowers Parliament C. Article 10 makes citizenship immutable D. Article 11 gives State legislatures exclusive citizenship power

Answer: B.

- **A:** Incorrect: OCI was created by later statutory amendments under Sections 7A-7D.
- **B:** Correct: the three Articles move from disqualification to continuity and then continuing parliamentary competence.
- **C:** Incorrect: Article 10 expressly makes continuance subject to parliamentary law.
- **D:** Incorrect: citizenship is a Union legislative field and Article 11 addresses Parliament, not exclusive State power.

Examiner trap: The close-option error is turning Article 9 into the whole permanent citizenship regime.

Q7. India's single-citizenship design means that

A. all residence classifications are unconstitutional B. every State benefit must be identical C. there is one Indian citizenship, while bounded regional protections may operate without State citizenship D. OCI holders possess a second Indian citizenship

Answer: C.

- **A:** Incorrect: Articles 16(3), 19(5) and special provisions permit bounded residence or regional protections.
- **B:** Incorrect: equal citizenship does not require identical fees, local cadres or protective rules in every circumstance.
- **C:** Correct: national membership coexists with constitutionally authorised asymmetry and residence-based administration.
- **D:** Incorrect: OCI is a foreign-national card status and never a second Indian citizenship.

Examiner trap: Single citizenship forbids separate State political membership, not every territorially differentiated rule.

Q8. Which distinction is legally sound?

A. Citizenship and residence are synonyms B. Domicile is a second State citizenship C. Long residence automatically produces citizenship D. Citizenship is membership, domicile is permanent legal home, and residence is factual presence

Answer: D.

- **A:** Incorrect: residence may be temporary or purpose-specific and does not itself create nationality.
- **B:** Incorrect: *Pradeep Jain* explains one Indian domicile, despite colloquial 'State domicile' certificates.
- **C:** Incorrect: every acquisition route has statutory gates beyond mere duration of residence.
- **D:** Correct: the three categories answer different legal questions and must be kept separate.

Examiner trap: A local domicile certificate can support a residence rule without changing national citizenship.

Q9. A person born in India on 30 June 1987 is generally a citizen by birth, subject to Section 3(2), because

A. birth occurred during the 26 January 1950-before-1 July 1987 period B. either parent had to be a citizen C. both parents had to be citizens D. one parent had to be a citizen and the other not an illegal migrant

Answer: A.

- **A:** Correct: the first statutory period was broad birth-based citizenship, subject to diplomat and enemy-alien exceptions.
- **B:** Incorrect: the either-parent requirement begins on 1 July 1987.
- **C:** Incorrect: the both-parent alternative belongs to the post-3 December 2004 rule.
- **D:** Incorrect: the illegal-migrant status of the other parent becomes relevant from 3 December 2004.

Examiner trap: A one-day date shift can move the hypothetical into a different parental-status rule.

Q10. A person born in India on 2 July 1987, before 3 December 2004, ordinarily needs

A. no parental connection B. either parent to have been an Indian citizen at birth C. both parents to be Indian citizens D. consular registration within one year

Answer: B.

- **A:** Incorrect: the purely place-based first period had ended on 1 July 1987.
- **B:** Correct: the middle period required citizenship of either parent at the time of birth.
- **C:** Incorrect: both-parent citizenship is only one post-2004 alternative.
- **D:** Incorrect: consular registration concerns birth outside India by descent, not birth in India.

Examiner trap: The 1987-2004 middle period asks 'either parent', not 'both parents'.

Q11. For birth in India on or after 3 December 2004, which is sufficient, subject to Section 3(2)?

A. Either parent is a citizen, whatever the other parent's status B. Five years' later residence C. Both parents are citizens, or one is a citizen and the other is not an illegal migrant D. Registration by a district collector

Answer: C.

- **A:** Incorrect: the other parent's illegal-migrant status is material where only one parent is a citizen.
- **B:** Incorrect: later residence does not cure failure of the parental rule at birth.
- **C:** Correct: Section 3(1)(c) states the two alternative parental combinations.
- **D:** Incorrect: citizenship by birth is statutory operation, not a Collector registration route.

Examiner trap: Post-2004 birth questions require checking both parents, not merely identifying one citizen parent.

Q12. Section 3(2) denies citizenship by birth in India where

A. a parent is an OCI cardholder B. the family later leaves India C. the child has two passports D. a parent has diplomatic immunity and is not an Indian citizen, or an enemy-alien parent is in enemy-occupied territory

Answer: D.

- **A:** Incorrect: OCI parentage is not itself one of Section 3(2)'s two exclusions.
- **B:** Incorrect: later migration does not retrospectively trigger the birth exceptions.
- **C:** Incorrect: passport possession may raise other legal questions but is not the text of Section 3(2).
- **D:** Correct: the subsection contains the diplomatic-immunity and enemy-occupation exceptions.

Examiner trap: Do not confuse the post-2004 illegal-migrant parental rule with Section 3(2)'s separate exceptions.

Q13. For a person born outside India before 10 December 1992, the ordinary descent rule looked to

A. the father's citizenship B. either parent's citizenship C. the mother's citizenship alone D. seven years' residence in India

Answer: A.

- **A:** Correct: the pre-10 December 1992 text used the paternal citizenship rule.
- **B:** Incorrect: the either-parent rule applies from 10 December 1992.
- **C:** Incorrect: the earlier rule was not a maternal-only rule.
- **D:** Incorrect: residence in India is not the foundational test for citizenship by descent abroad.

Examiner trap: Apply the gender-neutral either-parent rule only from the statutory 10 December 1992 threshold.

Q14. From 3 December 2004, citizenship by descent additionally requires

A. marriage to an Indian citizen B. consular registration within one year or later permission, with prescribed declaration controls C. five years as an OCI cardholder D. birth in a former Indian territory

Answer: B.

- **A:** Incorrect: marriage supports a possible Section 5 registration route, not descent.
- **B:** Correct: timely consular registration, or delayed registration with permission, and prescribed passport controls are central.
- **C:** Incorrect: the OCI five-year condition belongs to a Section 5 registration category.
- **D:** Incorrect: territorial history does not replace parentage and registration under Section 4.

Examiner trap: After 3 December 2004, citizen parentage alone is not the whole descent answer.

Q15. For relevant Section 5 registration categories, the seven-year ordinary-residence formula generally means

A. seven continuous years immediately before application B. five of the preceding seven plus two immediate years C. twelve months immediately before plus six years in the preceding eight D. eleven of the preceding fourteen plus twelve immediate months

Answer: C.

- **A:** Incorrect: the Act uses a split calculation rather than seven uninterrupted immediate years.
- **B:** Incorrect: this five-plus-two formula is not Section 5(1A)'s statutory calculation.
- **C:** Correct: the immediate year and six years in the preceding eight together create the seven-year measure.
- **D:** Incorrect: eleven-in-fourteen plus twelve months is the general Third Schedule naturalisation formula.

Examiner trap: Registration and naturalisation use different residence arithmetic; swapping them is a classic close option.

Q16. A foreign spouse of an Indian citizen who satisfies the residence rule

A. becomes a citizen automatically on marriage B. becomes an OCI automatically C. must be naturalised without discretion D. has a Section 5 eligibility route but still needs application, oath and a statutory decision

Answer: D.

- **A:** Incorrect: marriage is an eligibility relationship, not citizenship by operation of marriage.
- **B:** Incorrect: OCI spouse registration has its own conditions and is not automatic.
- **C:** Incorrect: the spouse route is registration under Section 5, not compulsory naturalisation.
- **D:** Correct: category, residence, application, oath and governmental satisfaction remain necessary.

Examiner trap: Relationship creates a door to apply; it does not itself confer Indian nationality.

Q17. Under the general Third Schedule, naturalisation ordinarily requires

A. twelve months immediately before application plus eleven aggregate years in the preceding fourteen B. seven unbroken years immediately before application C. five years in every case D. only knowledge of an Eighth Schedule language

Answer: A.

- **A:** Correct: the two residence limbs operate together alongside the remaining qualifications.
- **B:** Incorrect: seven-year arithmetic is associated with specified registration routes, not general naturalisation.
- **C:** Incorrect: five aggregate years is the CAA modification for its specified class, not the universal rule.
- **D:** Incorrect: language knowledge is one qualification and cannot substitute for residence or character.

Examiner trap: Always state both naturalisation residence limbs; 'eleven years' alone is incomplete.

Q18. The distinguished-service proviso to Section 6 allows

A. automatic citizenship for any award winner B. the Central Government to waive all or any Third Schedule conditions for distinguished service in named fields C. a State Government to waive Article 11 D. the Supreme Court to grant citizenship as a remedy

Answer: B.

- **A:** Incorrect: no award automatically establishes the statutory distinguished-service satisfaction.
- **B:** Correct: the Central Government may waive conditions for service to science, philosophy, art, literature, world peace or human progress.
- **C:** Incorrect: State governments do not hold Parliament's citizenship field or this waiver power.
- **D:** Incorrect: courts review legality but do not ordinarily replace the statutory citizenship authority.

Examiner trap: The waiver is discretionary and field-linked; it is not a freestanding honours quota.

Q19. Citizenship after incorporation of territory is principally determined by

A. Article 5 domicile alone B. automatic citizenship for every resident C. a Central Government order under Section 7 specifying persons and date D. an OCI notification under Section 7B

Answer: C.

- **A:** Incorrect: Article 5 was a commencement provision and is not the continuing incorporation mechanism.
- **B:** Incorrect: Section 7 requires a specifying order rather than an undifferentiated automatic rule.
- **C:** Correct: the Gazette order identifies the connected class and operative date.
- **D:** Incorrect: Section 7B concerns notified OCI rights, not incorporation of territory.

Examiner trap: Do not confuse Article 7 of the Constitution with Section 7 of the Citizenship Act.

Q20. A full-age citizen's registered declaration giving up citizenship is

A. termination, with no effect on minors B. deprivation for disaffection C. an OCI cancellation D. renunciation; a minor child also ceases but may resume within the statutory post-majority window

Answer: D.

- **A:** Incorrect: termination concerns voluntary acquisition of another country's citizenship.
- **B:** Incorrect: deprivation is an involuntary government order available only through its statutory gates.
- **C:** Incorrect: OCI cancellation affects a foreign-national card registration, not Indian citizenship.
- **D:** Correct: Section 8 governs voluntary renunciation and gives the minor child a resumption opportunity.

Examiner trap: Renunciation is voluntary and declaration-based; do not label every loss 'termination'.

Q21. Termination under Section 9 is most directly triggered by

A. voluntary acquisition of another country's citizenship B. seven years' residence abroad C. a two-year sentence within five years D. failure to vote in two elections

Answer: A.

- **A:** Correct: voluntary foreign citizenship is the central statutory trigger, subject to prescribed determination rules.
- **B:** Incorrect: prolonged residence abroad can be a deprivation ground for eligible categories, with exceptions.
- **C:** Incorrect: the specified conviction is also a possible deprivation ground, not termination.
- **D:** Incorrect: electoral non-participation has no such citizenship-loss consequence.

Examiner trap: Foreign citizenship triggers termination; overseas residence alone does not.

Q22. Which person is outside Section 10(1)'s opening deprivation category gate?

A. A qualifying naturalised citizen B. A citizen by birth C. A qualifying registered citizen D. A person citizen only by Article 5(c)

Answer: B.

- **A:** Incorrect: naturalised citizens are within the opening deprivation category.
- **B:** Correct: citizenship by birth is outside Section 10(1)'s specified category gate.
- **C:** Incorrect: many registered citizens fall within the gate, subject to express exclusions.
- **D:** Incorrect: a person citizen only by Article 5(c) is expressly included in the gate.

Examiner trap: Test category before ground: even serious allegations do not make Section 10 universal.

Q23. A lawful deprivation order requires

A. only an allegation of disloyalty B. only Central Government satisfaction C. eligible category, a listed ground, public-good satisfaction and the prescribed notice/inquiry safeguards D. prior conviction in every case

Answer: C.

- **A:** Incorrect: disloyalty is one possible ground and still requires the remaining statutory controls.
- **B:** Incorrect: public-good satisfaction cannot replace the category, ground and procedural requirements.
- **C:** Correct: Section 10 layers category, grounds, overall satisfaction and procedural fairness.
- **D:** Incorrect: fraud, enemy assistance and prolonged foreign residence show that conviction is not universal.

Examiner trap: Deprivation analysis is a four-gate sequence, not a one-word executive discretion.

Q24. Under Section 6A, qualifying Indian-origin persons who came to Assam before 1 January 1966 were

A. excluded from citizenship for ten years B. governed by the CAA 2014 cut-off C. required to await NRC publication
D. deemed citizens from 1 January 1966, subject to the statutory conditions

Answer: D.

- **A:** Incorrect: the ten-year electoral exclusion applies to the detected 1966-before-1971 stream.
- **B:** Incorrect: CAA's 31 December 2014 cut-off belongs to a different national statutory facilitation.
- **C:** Incorrect: Section 6A's legal consequence is not suspended until an NRC publication event.
- **D:** Correct: the earliest stream receives deemed citizenship from 1 January 1966.

Examiner trap: Pre-1966 and 1966-1971 entrants do not receive the same immediate electoral treatment.

Q25. A detected Section 6A entrant from 1 January 1966 but before 25 March 1971

A. registers, receives most citizen rights and obligations, but remains off electoral rolls for ten years from detection B. becomes a voter immediately C. is automatically deported D. is governed only by Article 6

Answer: A.

- **A:** Correct: Section 6A separates interim civil status from political enrolment for ten years.
- **B:** Incorrect: the statute expressly delays electoral-roll inclusion for the middle stream.
- **C:** Incorrect: this qualifying stream is regularised through registration rather than automatically deported.
- **D:** Incorrect: Article 6 was a commencement route and does not replace the Assam-specific statute.

Examiner trap: The ten years run from detection, not from entry, the Assam Accord or registration application.

Q26. What is the controlling result of In Re: Section 6A (17 October 2024)?

A. Section 6A was struck down retrospectively B. A 4:1 majority upheld Section 6A while identifying serious implementation deficiencies C. The CAA cut-off replaced the Assam cut-off D. The Court created Assam citizenship

Answer: B.

- **A:** Incorrect: only the sole dissent favoured prospective invalidity, while protecting past grants.
- **B:** Correct: validity and implementation were separated; the majority holding remains law.
- **C:** Incorrect: the judgment did not merge the 1971 Section 6A date with CAA's 2014 date.
- **D:** Incorrect: Section 6A confers Indian citizenship through an Assam-specific route.

Examiner trap: Implementation criticism does not convert the majority judgment into invalidation.

Q27. Which classification is correct?

A. NRI is a foreign national with an OCI card B. PIO card remains a separate current citizenship C. NRI is an Indian citizen abroad; OCI is a foreign national with a statutory card; PIO card was merged into OCI D. OCI is a naturalised Indian citizen

Answer: C.

- **A:** Incorrect: an NRI retains Indian citizenship and an Indian passport.
- **B:** Incorrect: the PIO card scheme was merged into the OCI framework in 2015.
- **C:** Correct: the three labels concern citizenship, residence and statutory card status differently.
- **D:** Incorrect: OCI registration does not naturalise the cardholder as an Indian citizen.

Examiner trap: NRI and OCI cannot be swapped: one is a citizen's residence description, the other a foreigner's card status.

Q28. Under the 4 March 2021 OCI notification, an OCI cardholder

A. has the same rights as a citizen in every field B. may vote after five years C. may buy agricultural land as a citizen
D. has lifelong multiple-entry visa facilities but needs permission for specified activities and remains excluded from political membership

Answer: D.

- **A:** Incorrect: OCI parity exists only where the statute or notification grants it.
- **B:** Incorrect: no duration of OCI registration creates voting rights.
- **C:** Incorrect: notified property parity does not extend to agricultural or plantation property.
- **D:** Correct: mobility and selected parity coexist with permissions, foreigner treatment outside grants and political exclusions.

Examiner trap: A lifelong visa is immigration facilitation, not nationality or democratic authorship.

Q29. The 11 August 2025 Section 7D(da) notification permits OCI cancellation where the cardholder is

A. sentenced to at least two years, or charge-sheeted for an offence punishable with at least seven years B. merely questioned by police C. resident abroad for seven years D. late in reporting an address once

Answer: A.

- **A:** Correct: S.O. 3662(E) specifies the sentence and charge-sheet thresholds under clause (da).
- **B:** Incorrect: investigation or questioning without the notified threshold is not the stated ground.
- **C:** Incorrect: seven years abroad is associated with a citizenship-deprivation ground, not this OCI notification.
- **D:** Incorrect: reporting duties do not become the specified serious-criminality ground merely by delay.

Examiner trap: The two-year figure concerns actual sentence; the seven-year figure concerns the offence's prescribed punishment at charge-sheet stage.

Q30. Which set exactly identifies the CAA Section 6B statutory class?

A. All persecuted persons from neighbouring countries B. Hindu, Sikh, Buddhist, Jain, Parsi and Christian persons from Afghanistan, Bangladesh or Pakistan entering on/before 31 December 2014 within the exemption framework C. All non-Muslims from South Asia entering before 2020 D. Every migrant in Assam before 25 March 1971

Answer: B.

- **A:** Incorrect: the operative class is narrower by community, country, date and exemption.
- **B:** Correct: all four elements are cumulative statutory controls.
- **C:** Incorrect: neither 'South Asia' nor a 2020 date states the enacted class.
- **D:** Incorrect: the Assam stream belongs to Section 6A and a different historical settlement.

Examiner trap: CAA cannot be paraphrased as a general refugee law or an all-neighbour amnesty.

Q31. What does a successful Section 6B process do?

A. Citizenship arises automatically on filing B. Every pending immigration case ends on application C. After statutory grant, citizenship is deemed from entry and specified pending proceedings abate; application alone is insufficient D. It converts OCI into dual citizenship

Answer: C.

- **A:** Incorrect: filing initiates scrutiny and does not confer nationality.
- **B:** Incorrect: abatement is tied to conferment of citizenship, not mere submission.
- **C:** Correct: the statute gives retrospective deemed date after grant while preserving decision gates.
- **D:** Incorrect: Section 6B concerns registration or naturalisation of its class, not OCI conversion.

Examiner trap: Deemed citizenship from entry operates only after grant; it is not automatic status on the cut-off date.

Q32. As officially verified through 7 September 2026, which statement is safest?

A. CAA automatically conferred citizenship on every class member, removed the protected-area exclusions and ended the constitutional litigation B. The 2025 immigration exemption replaced Section 6B, shifted its citizenship cut-off to 31 December 2024 and made one committee route nationwide C. The 2024 judgment invalidated Section 6A, while the 2026 Collector notifications expanded CAA eligibility to migrants from every neighbouring country D. CAA operates; protected Sixth Schedule/Inner Line areas remain excluded, the 19 August 2026 notifications change specified administration but not eligibility, and no final CAA merits judgment was located

Answer: D.

- **A:** Incorrect: application, document verification, oath, suitability and grant remain required; the protected-area exclusions and litigation continue.
- **B:** Incorrect: the 2025 order concerns passport/visa liability, does not replace Section 6B and does not amend its 2014 citizenship cut-off.
- **C:** Incorrect: the 4:1 majority upheld Section 6A, and the Collector notifications changed procedure rather than communities or countries.
- **D:** Correct: the enacted territorial exclusions remain, while G.S.R. 742(E) and S.O. 4583(E) change specified administration and transfer pending files rather than the statutory class.

Examiner trap: Territorial exclusion, administrative route, immigration exemption, citizenship eligibility and constitutional validity are separate legal questions.

PYQS AND ANSWER PRACTICE

Audited ownership and answer-key discipline

Item	Ownership and wording status	Key treatment
UPSC Prelims 2018 GS-I Q12	Exact text read from a local official paper; cross-topic proof/status relevance	No answer letter printed; final official/local-official key unavailable
UPSC Prelims 2021 GS-I Q89	Exact text read from a local official paper and routed directly to Citizenship	No answer letter printed; final official/local-official key unavailable
Direct owned Mains PYQ	None located in the audited 2018-2026 routing/verification ledgers	No question fabricated

Objective PYQ 1 - UPSC Prelims 2018 GS-I Q12

Question: Consider the following statements:

1. Aadhaar card can be used as a proof of citizenship or domicile.
2. Once issued, Aadhaar number cannot be deactivated or omitted by the Issuing Authority.

Which of the statements given above is/are correct?

A. 1 only B. 2 only C. Both 1 and 2 D. Neither 1 nor 2

Answer withheld pending official UPSC key.

Concept control: Section 9 of the Aadhaar Act states that an Aadhaar number or its authentication does not, by itself, confer a right of citizenship or domicile. The statutory framework also permits deactivation or omission in prescribed circumstances. Test both statements independently; no answer letter is promoted without a final official/local-official UPSC key.

Objective PYQ 2 - UPSC Prelims 2021 GS-I Q89

Question: With reference to India, consider the following statements:

1. There is only one citizenship and one domicile.
2. A citizen by birth only can become the Head of State.
3. A foreigner once granted the citizenship cannot be deprived of it under any circumstances.

Which of the statements given above is/are correct?

A. 1 only B. 2 only C. 1 and 3 D. 2 and 3

Answer withheld pending official UPSC key.

Concept control: *Pradeep Jain* supports one Indian citizenship and one Indian domicile. Article 58 requires the President to be a citizen, not a citizen by birth. Section 10 permits deprivation only for specified citizenship categories, grounds and procedures. Test each statement separately; no answer letter is promoted without a final official/local-official UPSC key.

Six original Mains questions with complete model solutions

Original Q1 - 10 marks / 150 words

Question: Distinguish citizenship, domicile and residence. Why does the distinction matter in Indian constitutional law? (150 words)

Demand: Define all three statuses, show two legal consequences of confusion and preserve the regional-protection qualification.

Model answer: Thesis: Citizenship is legal membership of India; domicile is a person's permanent legal home supported by residence and intention; residence is factual or ordinary physical presence. **Evidence:** Articles 5-11 and the Citizenship Act govern membership. Article 5 used domicile in India as a commencement gateway. *Pradeep Jain v. Union of India* stressed one Indian citizenship and one Indian domicile, while electoral law and Sections 5-6 of the Citizenship Act use ordinary residence for constituency or acquisition purposes. **Analysis:** The distinction prevents three errors. First, a State residence certificate cannot create State citizenship. Second, long residence does not automatically produce citizenship. Third, political rights require citizenship even when residence supplies an additional condition, as with electoral registration. **Qualification:** The Constitution still permits bounded regional protection through Articles 16(3), 19(5) and 371-based arrangements. **Conclusion:** India combines one political membership with differentiated residence-based administration; confusing the categories either overstates local preference or understates national citizenship.

Why this earns marks: It defines all three terms, uses Article 5, *Pradeep Jain* and specific constitutional exceptions, and ends with a qualified rather than absolute conclusion.

How to improve: Compress the distinction into a three-column membership-legal-home-factual-presence table, then add one consequence for voting and one Article 16(3) caveat.

Original Q2 - 10 marks / 150 words

Question: Explain why OCI is not dual citizenship. Evaluate the logic of its principal rights and restrictions. (150 words)

Demand: Separate notified OCI facilities from political exclusions and evaluate the design without calling it partial citizenship.

Model answer: Thesis: OCI is a statutory foreign-national card status under Sections 7A-7D, not Indian citizenship. **Evidence:** The 2021 MHA notification describes an OCI cardholder as a foreign national holding a foreign passport and grants a lifelong multiple-entry visa, limited parity in fees, NRI-equivalent access in specified education/property/professional fields and FRRO exemption. Section 7B withholds the vote, legislative membership, Presidency/Vice-Presidency, judgeship and Article 16 public-employment equality. **Analysis:** The design supports diaspora mobility, investment and cultural connection without creating competing political allegiance. The restrictions track the distinction between social-economic access and democratic authorship. **Qualification:** OCI is not secure against all change: rights depend on notification and registration can be cancelled under Section 7D with a hearing.

Conclusion: OCI is calibrated external membership - deeper than an ordinary visa, but deliberately short of nationality and political membership.

Why this earns marks: It names the statutory sections and 2021 notification, links each right/restriction to a design rationale, and avoids the "half citizenship" cliché.

How to improve: Separate OCI facilities from political exclusions in two columns and add the 11 August 2025 Section 7D(da) cancellation update as the current-value point.

Original Q3 - 15 marks / 250 words

Question: The Constitution settled citizenship at commencement but left its future architecture to Parliament. Discuss. (250 words)

Demand: Explain the commencement settlement, Article 11 transition and continuing constitutional review.

Model answer: Thesis: Part II creates a founding membership settlement, while Articles 10-11 deliberately make citizenship a continuing statutory project. **Constitutional settlement:** Article 5 uses domicile plus birth, parentage or five-year residence. Article 6 regularises specified migrants from Pakistan, dividing them at 19 July 1948. Article 7 excludes post-1 March 1947 migrants to Pakistan but permits a resettlement/permanent-return route. Article 8 enables consular registration of persons of Indian origin abroad. Article 9 disqualifies voluntary foreign citizenship for the specified commencement routes. **Parliamentary continuation:** Article 10 continues status subject to law; Article 11 preserves Parliament's power over acquisition, termination and all citizenship matters. The Citizenship Act, 1955 consequently supplies five acquisition routes - birth, descent, registration, naturalisation and incorporation - and three loss routes - renunciation, termination and deprivation. **Analysis:** The arrangement gives flexibility to respond to changing migration, diaspora and territorial conditions, illustrated by Section 6A, OCI and CAA amendments.

Qualification: Parliamentary breadth is not constitutional immunity. Article 14 review, Article 21 procedure and natural justice constrain classification, deprivation and cancellation. The 2024 Section 6A judgment demonstrates this duality: wide legislative competence, but searching constitutional review and implementation directions. **Conclusion:** The Constitution fixed the Republic's first citizenry; Parliament continuously defines the membership boundary, under constitutional supervision.

Why this earns marks: It answers both halves, covers every Article without becoming a list, links Article 11 to named statutory institutions and uses current case law as analysis.

How to improve: Use a 5->11 constitutional ladder and name one statutory example under Article 11; avoid spending more than one-third of the answer merely listing Articles.

Original Q4 - 15 marks / 250 words

Question: Section 6A is constitutionally valid, but its implementation remains a governance challenge. Analyse in light of the 2024 Constitution Bench judgment. (250 words)

Demand: Separate the controlling validity holding from implementation failure and use the dissent only as a qualified critique.

Model answer: Thesis: The 4:1 judgment separates the validity of Assam's historical settlement from the adequacy of its enforcement. **Scheme:** Section 6A deems pre-1966 Indian-origin entrants citizens; subjects the 1966-before-25 March 1971 stream to detection, registration and a ten-year electoral exclusion; and protects no post-cut-off entrant. **Majority:** Chief Justice Chandrachud and Justice Surya Kant's three-judge opinion upheld Parliament's Article 11 competence and found Assam plus the 1971 date to be a reasonable classification. They rejected challenges under Articles 6, 7, 9, 14, 21, 29, 326 and 355; Article 29 protects the capacity to conserve culture, and destruction of that capacity was not proved. **Governance deficit:** Justice Surya Kant nevertheless found tribunals and statutory machinery inadequate, stressed detection/deportation of post-1971 entrants, effective use of complementary laws and continuing judicial monitoring. **Dissent:** Justice Pardiwala argued that the absence of temporal closure and State-centred detection burden made Section 6A(3) manifestly arbitrary with time; he would invalidate prospectively while preserving past grants. **Assessment:** The dissent identifies design risk, but the majority controls. Administrative failure cannot be casually converted into invalidity; nor can validity excuse indefinite non-enforcement. **Conclusion:** Section 6A survives as law, but legitimacy now depends on timely, rights-respecting and reviewable implementation.

Why this earns marks: It gives the exact streams, majority holdings, sole dissent and a reasoned validity-versus-administration verdict.

How to improve: State the three Section 6A streams in exact dates, then organise the judgment as majority validity -> implementation directions -> Pardiwala dissent -> controlling verdict.

Original Q5 - 20 marks / 250 words

Question: Critically examine the Citizenship (Amendment) Act, 2019 as a classification under Article 14 and as an instrument of humanitarian policy. (250 words)

Demand: Apply Article 14's classification method to both humanitarian justification and under-inclusion objections.

Model answer: Thesis: CAA is an operative humanitarian facilitation whose constitutional legitimacy depends on whether its religion-country-date class is a reasonable response or an impermissibly under-inclusive citizenship preference. **Statutory design:** The law covers Hindus, Sikhs, Buddhists, Jains, Parsis and Christians from Afghanistan, Bangladesh and Pakistan who entered on/before 31 December 2014 and fall within specified exemptions. Section 6B enables registration/naturalisation, deems citizenship from entry upon grant and excludes Sixth Schedule tribal and Inner Line areas. The Third Schedule's aggregate period falls from eleven to five years; Rules 2024 created electronic application and committee scrutiny; from 19 August 2026, specified applicants use the jurisdictional Collector route under rule 11A(6). **Article 14 criticism:** Religion is explicit. Critics cite excluded Muslim sects and persecuted groups from other neighbours, secularism as a basic feature and the possibility that country selection is under-inclusive. Assam adds a federal-cultural objection: the 2014 date departs from the Accord's 1971 settlement. **Defence:** The State frames a narrow remedial class tied to Partition and vulnerable minorities in three selected neighbours; legislatures may address problems in stages. No existing citizen loses status and ordinary citizenship routes remain. Territorial exclusions show regional accommodation. **Assessment:** Humanitarian purpose does not end equality review; equally, under-inclusion does not automatically invalidate classification. The Court must test comparator, differentia, nexus and arbitrariness. **Conclusion:** Because the Act and 2024 Rules operate while constitutional challenges remain pending, the sound verdict is conditional: humanitarian legitimacy will endure only if the classification is judicially accepted as precise, non-arbitrary and secularism-compatible.

Why this earns marks: It states the exact law, separates aggregate and immediate residence, applies both sides of Article 14, adds Assam and current status, and avoids predicting the pending case.

How to improve: Add a boxed 2026 procedure update after the statutory design: specified applicants now approach the Collector; expressly say eligibility and the 2014 cut-off did not change.

Original Q6 - 20 marks / 250 words

Question: India's single citizenship coexists with differentiated regional protections. Does this strengthen or weaken the Union? Discuss. (250 words)

Demand: Assess integration benefits and constitutionally authorised asymmetry without inventing State citizenship.

Model answer: Thesis: Single citizenship supplies equal national membership; differentiated protections can strengthen that membership when they are constitutionally bounded, but weaken it when residence becomes a proxy for exclusion. **Integrative core:** Unlike classical federations with State citizenship, India gives one citizenship, one national franchise structure and interstate mobility under Article 19. *Pradeep Jain* rejects a separate State domicile in the constitutional sense. This lowers internal membership barriers and supports fraternity and a national labour market. **Protective asymmetry:** Article 16(3) allows Parliament to prescribe residence conditions for specified public posts; Article 19(5) permits tribal-protection restrictions; Articles 371A-371J protect customary law, land, local cadres or regional opportunity. Section 6A is another historical asymmetry, but it creates Indian rather than Assam citizenship. **Benefits:** These devices can reduce domination fears, preserve indigenous institutions and make national membership credible in culturally vulnerable regions. **Risks:** Excessive local quotas, vague "domicile" barriers or political hostility to interstate migrants can hollow out equal citizenship and conflict with Articles 14, 16(2) and 19. The former Article 35A debate illustrates how entrenched local privilege can become constitutionally contested. **Test:** A valid safeguard should have constitutional/statutory authority, a legitimate vulnerability or governance objective, proportional means, temporal review and no claim to a separate nationality. **Conclusion:** Differentiation strengthens the Union when it secures participation within common citizenship; it weakens the Union when it converts residence into hereditary political closure.

Why this earns marks: It uses named Articles, *Pradeep Jain*, Section 6A and a proportionality-style test, while balancing integration against regional vulnerability.

How to improve: Use an integration/protection/risk matrix and finish with a four-part validity test: authority, legitimate vulnerability, proportionality and periodic review.